

RMD - USDC - CHRS, SC
 2025 DEC 4 PM 2:13

IN THE UNITED STATES DISTRICT COURT
 DISTRICT OF SOUTH CAROLINA
 CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

**PLAINTIFF'S MOTION ADDRESSING THIRD-PARTY SUBPOENA NONCOMPLIANCE
 AND RESULTING PREJUDICE**

Plaintiff, Debra Nelson, respectfully moves this Court for relief under **Fed. R. Civ. P. 45, 37(a) and 37(b)**, the Court's inherent authority, and applicable federal case law, based on systemic and prejudicial **noncompliance with Plaintiff's duly issued Nonparty subpoenas** served on multiple corporations whose evidence is essential to Plaintiff's claims and damages.

This motion seeks to formally place the Court on notice of the **complete failure** of numerous third-party entities to comply with valid subpoena obligations, the **judicial delays and denials** that prevented enforcement, and the resulting **severe prejudice** to Plaintiff in light of the December 5 discovery deadline.

I. INTRODUCTION

Plaintiff, Debra Nelson, respectfully submits this Motion addressing the pervasive noncompliance, obstruction, and procedural irregularities associated with third-party subpoenas issued to Google, Microsoft, Verizon, Motorola Mobility, Honda/Acura, and Hunt Law LLC. Despite Plaintiff's diligent efforts to obtain critical digital-forensic and communications records necessary to prosecute her claims, multiple federal districts, clerks' offices, and corporate legal departments have failed to comply with Rule 45, failed to issue subpoenas promptly, withheld notice of critical actions, or refused to produce documents. These failures have severely prejudiced Plaintiff prior to the December 5, 2025 discovery deadline.

Plaintiff now seeks formal acknowledgment of these failures, judicial intervention, and corrective enforcement to mitigate prejudice resulting from third-party and procedural obstruction.

II. PROCEDURAL HISTORY AND TIMELINE OF SUBPOENAS

A. Apple

Apple received Plaintiff's subpoena and engaged in correspondence but ultimately produced no responsive materials. Apple then filed a Motion for Extension of Time *to respond to a filing that did not appear on the docket for Plaintiff*, creating a further procedural irregularity. Plaintiff did not send Apple her 11/6 filing—yet Apple responded to it—proving unequal access and docket manipulation. Apple remains noncompliant.

B. Google

- Plaintiff appeared in person at the U.S. District Court for the Northern District of California on October 31, 2025.
- A fully enforceable subpoena was issued on the spot and provided to Plaintiff.
- Google acknowledged receipt and confirmed processing, but provided no responses.
- Plaintiff mailed a Motion to Compel packet on November 21, 2025, demonstrating she had no notice of any deficiency.

GOOGLE SUBPOENA INVALIDATED WITHOUT NOTICE

On December 3, 2025, Plaintiff learned for the first time—via phone call to the Clerk's Office—that her enforceable subpoena was *withdrawn* and *invalidated* on November 6, 2025. Plaintiff received zero written notice, no docket entry, no email, and no mailed notice. The Clerk later asserted that notice was mailed, but because Plaintiff did not receive any such notice, she believed the subpoena remained active and enforceable.

If Plaintiff had received notice, she would *not* have filed the 11/21 Motion to Compel packet. The Clerk also stated that Plaintiff's 11/21 filing “was not in their system.”

This silent withdrawal deprived Plaintiff of nearly a full month of Google compliance time and prevented Plaintiff from obtaining essential digital-forensic evidence before the discovery deadline.

C. Microsoft

Microsoft received Plaintiff's subpoena, acknowledged it, and filed multiple objections instead of producing responsive data. Plaintiff initiated a meet-and-confer, which Microsoft ignored.

On November 14, 2025, the Western District of Washington entered a Text Order denying issuance of Plaintiff's subpoena, fifteen days after Plaintiff applied on October 30. Plaintiff received no notice during this period. Microsoft continued withholding all data.

This delay, combined with Microsoft's refusal to produce critical account-access and cyber-intrusion records, materially prejudiced Plaintiff.

D. Verizon

Verizon acknowledged Plaintiff's subpoena but has not produced documents. No protective motion, no objection, no extension request. Complete noncompliance.

E. Motorola Mobility

Motorola received Plaintiff's subpoena, but has not responded at all. Delivery was confirmed. No objection, no communication, no production.

F. Honda

Honda acknowledged Plaintiff's subpoena and engaged in limited correspondence but remains noncompliant. Plaintiff received an email delaying review due to "internal routing." No substantive response or production occurred.

G. Hunt Law LLC

Judge Cherry previously authorized the Hunt subpoena after reviewing Plaintiff's evidence. Judge Baker later quashed it without reviewing the evidence and based on false statements by Defense. Plaintiff reasserts Hunt as a critical third-party subpoena for cyber-intrusion links, attorney interference, and withheld communications.

III. SYSTEMIC PREJUDICE RESULTING FROM THIRD-PARTY NONCOMPLIANCE

The combination of:

- ignored subpoenas,
- silent withdrawals,
- missing filings,
- unexplained judicial delays,
- lack of notice,
- and corporate stonewalling

has resulted in Plaintiff being deprived of core digital-forensic evidence needed to prove cyber intrusion, unauthorized monitoring, metadata tampering, witness interference, and other elements directly tied to liability and damages.

These failures were not isolated. They occurred in multiple federal districts and across multiple corporate entities, demonstrating a systemic breakdown rather than coincidence or clerical error.

IV. REQUEST FOR RELIEF

Plaintiff respectfully requests that the Court:

1. Acknowledge the prejudice caused by third-party noncompliance.
2. Issue an Order directing all third parties to immediately comply with Plaintiff's subpoenas.
3. Authorize re-issuance of enforceable subpoenas where federal districts failed to issue or withdrew subpoenas without notice (including Google, Microsoft, and Verizon).
4. Compel production within a strict, court-supervised timeline.
5. Require written explanations from federal districts where filings or motions cannot be located.

6. Grant any further relief necessary to restore fairness and completeness to the discovery record.

V. EXHIBITS

Exhibit A — Deposition Excerpts (pp. 221–231) Demonstrating Defense’s Knowledge of the Relevance of Subpoenaed Evidence

This exhibit contains deposition testimony showing Defense counsel questioned Plaintiff directly about cyber intrusion, surveillance, digital account compromise, subpoena-related evidence, and damages — confirming that the information sought through the nonparty subpoenas is central to liability and damages in this action.

Exhibit B — Apple Motion for Extension of Time (11/25/25)

Exhibit C — Enforceable Google Subpoena Issued 10/31/25 and Clerk’s Statements Regarding Improper Withdrawal and Missing November 21 Filing

Exhibit C-1 – Response from Google

Exhibit C-2 – Google Subpoena

Exhibit C-3 — Email Chain With NDCA Clerk Steven Chilton (Dec. 3, 2025)

Shows Plaintiff was never notified of the subpoena withdrawal; confirms the Clerk’s withdrawal occurred without a docket entry, written order, or any notice to Plaintiff.

Exhibit D — Microsoft Correspondence and Nonproduction and WA denial order

- **EXHIBIT MS-1 — Order from Judge Chun (11/14/25)**

The controlling judicial directive they ignored.

- **EXHIBIT MS-2 — Microsoft’s Objection (selected pages)**

- **EXHIBIT MS-3 — Your Meet-and-Confer Email**

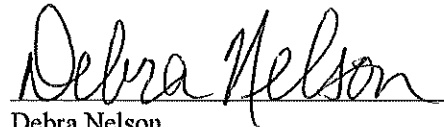
Exhibit E — Verizon Wireless Letter from Security Subpoena Compliance

Exhibit F — Motorola UIDDA Subpoena

Exhibit G — Honda Email (demonstrating noncompliance)

Exhibit H — Plaintiff’s communications with WA clerk re: delays

Respectfully submitted December 4, 2025,



Debra Nelson
Plaintiff, Pro Se
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CERTIFICATE OF SERVICE

EXHIBIT A

Debra E Nelson

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical
Corp. d/b/a Curtiss-Wright Steam
and Air Solutions, Stephanie Lanier,
and Shane Sablotsky,

Defendants.

DEPOSITION: Debra E. Nelson
DATE: October 28, 2025
TIME: 10:20 a.m. EST
LOCATION: Veritext Legal Solutions
28 Bridgeside Boulevard, Suite 205
Mount Pleasant, SC
TAKEN BY: Counsel for the Plaintiff
REPORTED BY: Rosemary F. Grogan, CSR, RPR

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue is the Plaintiff Debra Nelson

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1 recall that we haven't discussed today?

2 A. Everything that I've talked about in here I
3 told her. I even told her about the -- about me being
4 hacked. She said she was going to make note of it. I
5 mean, I wasn't sure if there was anything she could do,
6 but I figured the more people that knew, you know, it
7 put me in a position where I'm safer.

8 Q. Let's talk about that. You also asserted a
9 claim in this case for intrusion into private affairs.
10 What evidence do you have that Curtiss-Wright intruded
11 into your private affairs?

12 A. Discovery is not complete so I can't confirm
13 or deny.

14 Q. Do you have any evidence, as you sit here
15 today, that Curtiss-Wright has intruded into your
16 private affairs?

17 A. Discovery is not complete. I can't confirm or
18 deny.

19 Q. That's not my question. My question is, as
20 you sit here today, do you have any evidence that
21 Curtiss-Wright intruded into your private affairs, yes
22 or no?

23 A. I can't confirm or deny. Discovery is not
24 complete. I can confirm that none of this occurred
25 until after I filed complaints against Curtiss-Wright.

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1 I can confirm that.

2 Q. So is the only evidence you have, as you sit
3 here today, that Curtiss-Wright intruded into your
4 private affairs is that there were some efforts to
5 follow you by some unknown person in Arizona, there was
6 a man outside your home, an unknown person, at 1 o'clock
7 at night, and there was a cell phone that showed up in
8 your window, and that occurred after your separation
9 from Curtiss-Wright?

10 A. I can't confirm or deny Curtiss-Wright's
11 involvement but the instances did not occur until after
12 my complaint was filed against Curtiss-Wright.

13 Q. On April 22nd, 2024, you claim your car's
14 entertainment system played unsolicited audio and
15 broadcasted your private calls without your consent.

16 What was the unsolicited audio that was
17 played?

18 A. That's misquoted. I said the -- over my
19 entertainment system, it looked like I was on a call and
20 I was not on either one of my phones because I checked.
21 I was like, well -- so I took a video of it. I was
22 like, okay, what is this?

23 Q. So it wasn't actually saying anything. It
24 just looked like you were on a call?

25 A. Yeah, it was timing like I was on a call. And

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1 it's done that twice already.

2 Q. And you believe that's related to your
3 employment at Curtiss-Wright?

4 A. I believe that it's related to whoever is
5 after me which I don't know because discovery is not
6 complete.

7 Q. Why do you also believe that Curtiss-Wright is
8 intentionally monitoring your emails?

9 A. I can't confirm or deny that.

10 Q. Do you have any evidence to support
11 Curtiss-Wright --

12 A. Oh, we're talking about company emails or
13 personal emails?

14 Q. Let me ask it both ways. We'll start with
15 personal emails. Do you have any evidence that
16 Curtiss-Wright at any time has monitored your personal
17 emails?

18 A. I can't confirm or deny that. Discovery is
19 not complete.

20 Q. That's a no, you don't have any evidence as
21 you sit here?

22 A. I can't confirm or deny. So I can't say yes
23 or no.

24 Q. Do you have any evidence that Curtiss-Wright
25 is intentionally or has intentionally monitored your

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1 work email?

2 A. I've witnessed it on two different occasions
3 while sitting at my desk at my computer. One time I was
4 talking to Jeff and I was sitting there and I got an
5 email from Paul Ferdenzi, and when I go to look for the
6 email, it's gone. I saw a notification. I went to my
7 inbox and that email was gone. I never found it because
8 I kept looking for it.

9 And another instance is when it was during
10 the -- I think it was that Monday, October 2nd, after
11 the time adjustment incident. I sent an email to James
12 Lawrence asking him for my badge times for that week,
13 and he sent me an email. He did respond. When I went
14 to look for the email, I couldn't find it. I was like,
15 okay, here we go again. I just got up and went to his
16 office and he wrote down the information. And then when
17 I emailed -- made mention of it in the email, which
18 Shane and Stephanie was on, then this email that James
19 sent me magically appeared.

20 But I knew when I was sitting at the desk when
21 I looked for it, it wasn't there.

22 Q. So you believe that because you had emails at
23 one time in your inbox and then you couldn't find them
24 later, that that was evidence that Curtiss-Wright was
25 spying on your emails?

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1 A. No, that was instantly because I was sitting
2 there. I got a notification, clicked on it, went to
3 find it, the email was gone. They were intercepting my
4 emails on two different occasions that I can say without
5 a shadow of a doubt because I saw it happening and I
6 went to open the email instantly and it was gone.

7 Q. Do you all have the ability to un-send email
8 at Curtiss-Wright? Did you ever try that?

9 A. I never tried that.

10 Q. Is it possible that the folks who sent you
11 those emails unsent them and so they were pulled back
12 after they sent them?

13 A. I don't know. I don't know why James would
14 un-send me an email about my time. That doesn't make
15 any sense.

16 Q. You wrote several letters to President Biden?

17 A. I did.

18 Q. In one of those letters do you recall accusing
19 the federal government of restricting and manipulating
20 your emails?

21 A. I would have -- yeah, I would have believed
22 that, but at this point I don't know who's doing it.
23 Like, I'm no threat to anybody. You know what I'm
24 saying? Like who am I, and why are we wasting the
25 government's money following me? Like, who am I? I

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1 have the most boring life. I go home. I go get
2 something to eat. Like, I have a boring life. There is
3 no reason for anybody to be following me checking into
4 my email, doing all that other stuff.

5 Like what are you after other than trying to
6 intimidate me which does not work obviously?

7 (Exhibit 22 marked for identification)

8 THE WITNESS: And my thing is if the
9 government is doing it, which I can't confirm or
10 deny, it's because of Curtiss-Wright. What else is
11 going on in my life? I have nothing else going on
12 that would warrant this type of behavior.

13 BY MR. SAMPLES:

14 Q. Ms. Nelson, do you have any evidence that the
15 federal government is monitoring your email?

16 A. I can't confirm or deny. I can say this. I
17 will say a motive for -- for this behavior could be
18 related because while I was in Arizona I got
19 notifications about -- and I don't know why, but this
20 came up in my notifications about the shipbuilding
21 process in the U.S. And at the time one of the articles
22 had the Secretary of the Navy, who was Carlos Del Toro
23 at the time, and they were talking about -- there's
24 another country, they were impressed by how fast they
25 were building the ship. And they talked about how the

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1 U.S. was so far behind in shipbuilding.

2 And not only that one article, I got like four
3 or five different articles talking about the same thing.
4 I was like, oh, so this is what this is about. They
5 want me to shut the hell up so the shipbuilding thing
6 can continue to get on track, you know. So I was
7 like -- because none of this made any sense to me. I'm
8 like, who am I? And then when I got those articles,
9 which I've got copies of, I was like, okay, here's the
10 motive, because all this other stuff made no sense to
11 me.

12 Q. So it's your belief that the federal
13 government is monitoring your emails to prevent you from
14 doing or saying anything that might negatively impact
15 the U.S. shipbuilding industry?

16 A. I believe Curtiss-Wright, the Navy, there's
17 something going on there that they're targeting me,
18 retaliating against me, trying to get me to shut up.

19 Q. Other than your belief that that is happening,
20 do you have any evidence to support your belief?

21 A. That's why I got issued subpoenas so I can get
22 everything --

23 Q. So far in response to those subpoenas have you
24 received any evidence --

25 A. Not yet. Discovery is not complete.

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1 Q. You also claim in the letter to President
2 Biden that your résumés and DD 214 were deleted from USA
3 Jobs without your knowledge?

4 A. Yes. That's what I'm saying, like --

5 Q. Do you believe the government was responsible
6 for that?

7 A. I personally didn't believe Curtiss-Wright had
8 the ability to do all that, but -- you know what I'm
9 saying? I don't know what they're capable of doing.
10 All I know is I have a USA Jobs account that I don't
11 check frequently. I've had this account for probably,
12 what, 20 years now.

13 They don't delete anything. Nothing drops off
14 of that website. Like if I put a résumé on there in
15 2000, that résumé will stay on there until I delete it
16 or update it. When I tried to access my account, my
17 résumé was gone. My job searches were gone. Somebody
18 had access to my account because I would never delete my
19 résumé off of USA Jobs. And like -- and I just was
20 like --

21 And so it's the constant invasion into my
22 personal matters that just caused me a lot of distress.
23 I'm like what the F is this? Really, are we in the
24 United States or are we in Russia, because I'm confused?
25 So like all my personal stuff was being invaded and I

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1 felt like there's nobody here to protect me, because as
2 far as I know, it's Curtiss-Wright and the government or
3 one or the other.

4 So I'm like -- and then the people I'm turning
5 to to help me, they're ignoring me. So yeah, that
6 caused quite a bit of distress.

7 Q. You also state in your letter that the YouTube
8 channel you created to chronicle your experience on your
9 house-flipping journey was deleted.

10 You believe Curtiss-Wright was responsible for
11 that?

12 A. I can't confirm or deny. Discovery is not
13 complete.

14 Q. Do you believe the federal government was
15 responsible for that?

16 A. I can't confirm or deny. Discovery is not
17 complete, but yes, my YouTube was deleted and then all
18 of a sudden it reappears.

19 Q. Did you accuse the federal government of
20 illegally surveilling you on your electronic devices
21 such as phones, printers, and your car being hacked?

22 A. To be honest with you, stuff like that I would
23 automatically think that it's some kind of governmental
24 secret, you know, law enforcement because you wouldn't
25 think a corporation that builds parts is doing stuff

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1 like that, but I don't know. There's a whole world of
2 stuff that's going on that I have no knowledge of.

3 So I don't know who's doing it, but I'm trying
4 my best to find out.

5 Q. Bear with me one second.

6 How much money are you looking for to get out
7 of this case, Ms. Nelson?

8 A. A lot. Considering everything that I've gone
9 through in the last two years, I'm looking to be well
10 compensated and it's mostly due to the stress and the
11 constant worry of who's listening to me, who's following
12 me. All my thoughts of having any privacy has been
13 robbed. I don't have any confidence that any time I get
14 on the phone I'm not being listened to.

15 And the same thing with the emails. They
16 ain't blocking it anymore, but I don't have any
17 confidence that anything I do is private. And then the
18 attempts to try to set me up with these random guys
19 messaging me. Come on now, it's not going to happen.
20 So my whole life has changed because of this?

21 Q. But how much money are you looking for?

22 A. I'm still debating, but it's going to be a
23 lot.

24 Q. And most of that comes from, you said, the
25 stress you've experienced. Is that like emotional

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1 distress type damages?

2 A. Oh, definitely, emotional distress.

3 Q. You were only out of work for about four
4 months; is that right?

5 A. Yes.

6 Q. So your lost wages are basically limited to
7 that four-month period of time between November 21st,
8 2023, and then March of 2024, when you started this new
9 job?

10 A. Correct.

11 Q. Then the new job you're actually making more
12 money than you were making at Curtiss-Wright,
13 significantly more?

14 A. Oh, yeah, because they know my certification.

15 Q. Other than the therapist you mentioned
16 earlier -- remind me of her name, Sue?

17 A. Sue Shealy.

18 Q. Have you treated with any medical providers in
19 connection with the claims in this case?

20 A. No. I don't like to -- I don't want to be put
21 on any medication or anything, but I -- I talk to Sue
22 Shealy when I need to.

23 Q. How much do you pay Ms. Shealy for her
24 services?

25 A. Whatever she charges me for the visit.

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EXHIBIT B

**UNITED STATES DISTRICT COURT FOR THE
DISTRICT OF SOUTH CAROLINA
CHARLETON DIVISION**

Debra Nelson,

Plaintiff,

v.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, Stephanie Lanier, and Shane
Sablotsky,**

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

**NON-PARTY APPLE INC.'S MOTION
FOR EXTENSION OF TIME**

Third-Party Apple Inc. ("Apple"), by and through undersigned counsel, respectfully requests a ten (10) day extension of the deadline set to file its Response to Plaintiffs Objections (ECF No. 219) filed on November 14, 2025.

The Text Order dated November 24, 2025, states Defendants may file responses to the objections within 14 days after Plaintiffs Objections were entered on the docket. Though the Objections were filed November 14, 2025, they were entered on the docket on November 17, 2025. Therefore, the current deadline is December 1, 2025. Non-Party Apple, Inc. asks the Court to extend the deadline to December 8, 2025, to respond to Plaintiffs' Objections. Granting this extension would not affect other deadlines in this litigation and would not prejudice any party.

Apple makes this Motion based on attorney and client availability during the Thanksgiving holiday week. In particular, Apple is under a company-wide shut down until December 1, 2025, the date of the current deadline.

For the reasons set forth herein, Apple respectfully requests that the deadline to respond to Plaintiff's Objections (ECF No. 219) be extended by seven (7) days, resulting in a new

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deadline of December 8, 2025.

Respectfully submitted,

s/ Robert Wehrman

Brian C. Duffy (Fed ID No. 9491)

Robert Wehrman (Fed ID No. 13426)

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Attorneys for Non-Party

Apple Inc.

November 25, 2025

Charleston, South Carolina

EXHIBIT C-1

Google LLC
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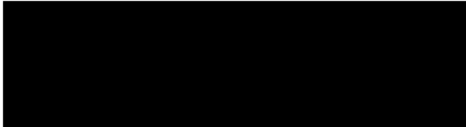


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September 10, 2025

Via Email
nelsondebra62@gmail.com

Debra Nelson



Re: *Debra Nelson v. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier and Shane Sablitsky*, United States District Court for the District of South Carolina, 2:25-CV-00405-DCN-MHC (Internal Ref. No. 107893463)

Dear Debra Nelson:

Google LLC ("Google"), a non-party to your litigation, has received your subpoena, dated August 27, 2025, in the above-referenced matter (the "Subpoena"). As we understand it, your Subpoena requests documents or testimony related to the purported Google accounts outlined in your Subpoena.

Without waiving our objections, Google may be willing to produce responsive non-content data, to the extent it exists and is available. Any productions made by Google are subject to the objections and limitations set forth below. Google further hereby makes the following objections to the Subpoena.

Jurisdiction

Google objects to the Subpoena to the extent that it has been issued by a court without subpoena power over non-party Google, and has not been properly domesticated in California as required by Cal. Civ. Proc. Code §§ 2029.100, *et seq.*, see also the Uniform Interstate Depositions and Discovery Act ("UIDDA"). Subpoena power over a non-party does not extend beyond state lines, and Google is headquartered in California and documents and information regarding its business are retrievable and will be produced only from its headquarters in Santa Clara County, California. Accordingly, Google accepts and responds to subpoenas issued from Santa Clara Superior Court and properly served upon Google, or the appropriate office of Google's registered agent, Corporation Service Company (CSC) (*see* <https://support.google.com/faqs/answer/6151275?hl=en>). California law provides a mechanism for obtaining a subpoena from a California court for use in judicial proceedings pending in other state court jurisdictions. *See* Cal. Civil Proc. Code § 2029.100 *et seq.*

GIL Entity

To the extent that a Google account you are requesting information for, relates to services provided by Google Ireland Limited (GIL), which is incorporated in Ireland and which operates under Irish law, Google objects to those requests. In order to provide the information related to

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1600 Amphitheatre Parkway
Mountain View, California 94043



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accounts whose services are provided by Google Ireland Limited, Google requires binding legal process issued by an Irish court or under Irish law which must be validly served on Google Ireland.

Request for Google Workspace User(s)

To the extent that your request implicates a Google Workspace account, Google objects to the Subpoena because the appropriate entity to whom you should direct your request is the owner of the Workspace domain. The owner of the domain has custody and control over data associated with their domain, and accordingly legal process seeking such data should be directed towards the owner of the Workspace account. If you are seeking content related to a Google Workspace account, you have several options at your disposal as to how you can lawfully obtain this information:

1. You can ask the administrator for the content. The administrator can find instructions for downloading the organization's data at <https://support.google.com/a/answer/100458>.
2. Google users can obtain and produce their account content themselves by using Google Takeout, available at www.google.com/takeout/; or
3. You can request a court to order the administrator to comply with #1.

Insufficient Information

If there is limited information provided in the Subpoena such as the lack of proper and reliable identifiers, date ranges or proper names, Google objects to the Subpoena because it is unable to determine whether there is a relevant account in our records. Google cannot respond to the subpoena if it fails to sufficiently identify a Google account. Google has hundreds of millions of users, making it impossible to ensure that searches based on proper name, company name, birthday, social security number, presumed location, or similar information accurately identify the correct records.

Service

Google objects to the Subpoena to the extent it was improperly served. *See* Cal. Civ. Proc. Code § 2029.400; Fed. R. Civ. P. § 45(b)(1).

User Notification

Google objects to the Subpoena to the extent it fails to allow sufficient time for Google to notify the affected user and for the user to assert his or her rights in response. Google provides its users at least 21 days to object to your request or to inform Google of their intent to file a motion to quash. If your subpoena sufficiently identifies a Google account, Google intends to forward notice of this matter, including your name and contact information, to the user at the email address associated with the Google Account.

First Amendment

Google objects to the Subpoena to the extent that the Subpoena asks for Google to disclose the identity of Google users who posted certain reviews or certain content, which implicates the First Amendment rights of Google users to engage in anonymous speech. *Glassdoor, Inc. v.*

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Superior Court, 9 Cal. App. 5th 623 (Cal. Ct. App. 2017) (holding that online provider had standing to assert First Amendment objections to subpoena seeking to unmask anonymous users, and requiring a litigant to demonstrate a prima facie cause of action and provide evidence supporting its claim); *Krinsky v. Doe 6*, 159 Cal. App. 4th 1154, 1164-64 (Cal. App. Ct. 2008) (stating that “[s]peech on the Internet is...accorded First Amendment protection,” and that, “[o]nce notified of a lawsuit by the website host or ISP, a defendant may then assert his or her First Amendment right to speak anonymously through an application for a protective order or...a motion to quash the subpoena.”). California law requires a court to evaluate whether a plaintiff has made a prima facie showing of its cause of action before a plaintiff can compel a provider such as Google to disclose identifying information regarding an anonymous online speaker. *Glassdoor*, 9 Cal. App. 5th at 636 (“It is the court, not counsel, that must determine whether a prima facie showing of actionable statements has been made.”). Litigants must further make “a showing of specific facts demonstrating discovery of [the Google users’] identities [is] reasonably calculated to lead to the discovery of admissible evidence.” *Digital Music News LLC v. Superior Court*, 226 Cal. App. 4th 216, 226 (2014), disapproved of on other grounds, *Williams v. Superior Court*, 3 Cal. 5th 531 (2017); see also *ZL Technologies, Inc. v. Does 1-7*, 13 Cal. App. 5th 603, 617 (2017) (plaintiffs can obtain identifying information from a provider when a court determines discovery of a person’s identity is “necessary” to pursue the claim). Although there is no indication you have done so, if a court has considered and imposed the First Amendment safeguards required before a litigant may be permitted to unmask the identity of an anonymous speaker, please provide us with a copy of any relevant documents. Moreover, please provide us with a copy of the plaintiff’s complaint in this matter so that we can assess whether the plaintiff has or will be able to meet the First Amendment standard or demonstrate a compelling need for this discovery.

Violation of Federal Law

To the extent the Subpoena can be construed to include information we are prohibited from disclosing, Google objects on the grounds that Section 2702(a) of the federal Stored Communications Act (“SCA”) prohibits Google from disclosing the content of electronic communications or content stored on behalf of the user, pursuant to a subpoena. The SCA prohibits Google from disclosing the content of electronic communications, including the headers for e-mails containing specific terms, pursuant to a subpoena. The production you seek would cause Google to disclose the presence or absence of communications containing specified content. A subpoena is not sufficient legal process for Google to disclose the existence of communications containing specific content. It is our position that this is a disclosure prohibited by the Stored Communications Act. 18 U.S.C. § 2702(a) see e.g., *Suzlon Energy Ltd. v. Microsoft Corp.*, 671 F.3d 726, 730 (9th Cir. 2011); *Theofel v. Farey-Jones*, 359 F.3d 1066 (9th Cir. 2004); *Mintz v. Mark Bartelstein & Assocs., Inc.* 885 F. Supp. 2d 987, 993-94 (C.D. Cal. 2012); *In re Subpoena Duces Tecum to AOL, LLC.*, 550 F.Supp.2d 606, 611 (E.D. Va. 2008); *Flagg v. City of Detroit*, 252 F.R.D. 346, 366 (E.D. Mich. 2008); *Viacom Int’l Inc. v. YouTube Inc.*, 253 F.R.D. 256 (S.D.N.Y. 2008); *O’Grady v. Superior Court of Santa Clara*, 139 Cal. App. 4th 1423, 1441-43 (2006).

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Instead, the appropriate way to seek such content is to direct your request to the account holder who has custody and control of the data in the account, is not bound by the SCA, and is the party to whom discovery requests should be directed. *Suzlon*, 671 F.3d 726, 730-31; *Mintz*, 885 F. Supp. 2d at 993-94; *O'Grady*, 139 Cal. App. 4th at 1446-47. If the account holder is a party to the underlying litigation, you may serve a document request on the account holder for the content sought. *See Mintz*, 885 F. Supp. 2d at 993-94; *O'Grady*, 13 Cal. App. 4th at 1446-67; *see also Flagg*, 252 F.R.D. at 348, 366-67. Google users can obtain and produce their account content themselves, or by using Google Takeout, available at www.google.com/takeout/. To the extent you are seeking the production of content based on a signed consent form, Google objects to the request because Google is unable to verify that the person signing the form is the account owner.

Additionally, if the Subpoena seeks preservation of the contents related to a user's account, Google objects to the Subpoena on the grounds that it requests that Google preserve the content of electronic communications or content stored on behalf of the user. Preservation is for information that Google would ultimately be able to produce under the SCA.

Authentication

You do not need Google to authenticate any records. Google cannot authenticate the identity of the person who drafted or received a communication. Moreover, under California law, any of the following can authenticate the content in question: the owner of the account; any witness with knowledge; any participant to the communications; circumstantial evidence; or the person who collects the content for production. *See* Cal. Evid. Code § 1410 (No restriction on "the means by which a writing may be authenticated."); *id.* § 1421 (Writing can be authenticated by its contents.). The Court of Appeal has held that a printout of an online profile was sufficiently authenticated by the police investigator that downloaded the printout, noting that the "threshold authentication burden for admissibility is not to establish validity or negate falsity in a categorical fashion, but rather to make a showing on which the trier of fact reasonably could conclude the proffered writing is authentic." *People v. Valdez*, 201 Cal. App. 4th 1429, 1434-37 (2011). Thus, defendant, his or her authorized representative, a defense investigator, or any witness with knowledge are all proper parties to authenticate content, and authentication by Google is therefore unnecessary.

Obligations of Parties to Litigation

Google, a nonparty to the litigation objects to the subpoena because it would impose an undue burden to. *See* Fed. R. Civ. P. 45(d)(1). Provided that the account in question appears to belong to a party-opponent in the litigation, a third-party subpoena is not justified. *See Haworth, Inc. v. Herman Miller, Inc.*, 998 F.2d 975, 978 (Fed. Cir. 1993) (upholding refusal to enforce subpoena issued to non-party where same documents were available from party opponent); *Hasbro, Inc. v. Serafino*, 168 F.R.D. 99, 100 (D. Mass. 1996) ("If documents are available from a party," it is "preferable to have them obtained pursuant to Rule 34 rather than subpoenaing them from a non-party witness.") (internal alterations and citation omitted); *Musarra v. Digital Dish, Inc.*, No. 2:05-CV-545, 2008 WL 4758699, at *4 (S.D. Ohio Oct. 30, 2008) ("[T]he Court will not impose on this non-party the burden of producing documents presumably available to

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plaintiffs from a party to this litigation.”); *Calcor Space Facility, Inc. v. Superior Court*, 53 Cal. App. 4th 216, 225 (1997) (“As between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered.”).

To the extent these records are sought to verify the completeness or accuracy of discovery from a party to the litigation, the Federal Rules of Civil Procedure do not permit third-party subpoenas for hypothetical impeachment evidence. *See, e.g., Cusumano v. Microsoft Corp.*, 162 F.3d 708, 712 (1st Cir. 1998) (affirming the trial court’s denial of a Rule 45 subpoena where the information was sought “for purposes akin to impeachment.”); *Musarra*, 2008 WL 4758699, at *3-4 (rejecting plaintiff’s request for non-party discovery to “compare[] and contrast[]” with defendants’ production). If you have reason to suspect that another party has not complied with their discovery obligations, you have other means available that do not place an undue burden on a third party. For example, you can request that the other party produce account data while under supervision by the court or by a special master or obtain the services of an e-discovery consultant. *See, e.g., Seven Seas Cruises S. De R.L. v. V. Ships Leisure SAM*, No. 09-23411-CIV, 2011 WL 772855, at *7 (S.D. Fla. Feb. 19, 2011), report and recommendation adopted, No. 09-23411-CIV, 2011 WL 772902 (S.D. Fla. Feb. 28, 2011) (granting a motion to compel after finding that defendant’s production contained significant gaps, and ordering defendant to “retain the services of a qualified third party E-Discovery consultant or vendor and perform a search.”). *See also Logtale, Ltd. v. IKOR, Inc.*, No. C-11-05452 CW (DMR), 2013 WL 3967750, at *3 (N.D. Cal. July 31, 2013) (noting “obvious gaps and underproduction,” and suggesting that, if there were “continuing problems. . . the court [would] order [defendants] to retain the services of an e-discovery vendor and . . . submit sworn, detailed declarations regarding their document preservation and collection efforts.”).

Deposition/Testimony

Google objects to the Subpoena to the extent it calls for a deposition or testimony and does not intend to make a witness available on the requested date pursuant to its objections below.

1. Google objects on the grounds that the Subpoena imposes an undue burden on Google, a non-party. Google also objects on the grounds that the information sought can be obtained through less burdensome means, including from the parties to the case or through the production of documents in response to the Subpoena.
2. Google objects to the extent that the Subpoena is seeking testimony to authenticate records produced by Google. Such testimony is unnecessary and unduly burdensome as records can be authenticated by Certificate of Authenticity.
3. Google objects to the extent that the Subpoena calls for testimony more properly sought from an expert witness, including but not limited to testimony regarding how Google’s products or services work.
4. Google objects on the grounds that the Subpoena is vague, overbroad, duplicative, cumulative, and oppressive. Google further objects to the extent the Subpoena is served for the purpose of annoying and harassing Google, a non-party.
5. Google objects on the grounds that the Subpoena demands that Google, a non-party, appear as a witness at its own expense. To the extent that Google appears as a witness

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- pursuant to the Subpoena, Google shall only do so upon compensation allowed under applicable law for any costs, including attorney fees, related to the deposition.
6. Google objects to the time and place set by the Subpoena for the deposition. The time and place of the requested deposition was selected unilaterally, without consulting with Google about the availability of its witness(es) or its counsel. To the extent Google produces a witness to provide deposition testimony in response to the Subpoena, Google shall do so at a mutually agreeable time and place.
 7. Google objects to any Topics to the extent they seek testimony regarding confidential financial, proprietary or trade secret information, or any information subject to a confidentiality agreement or protective order.
 8. Google objects to the Topics to the extent it seeks testimony protected by any privilege, including the attorney-client privilege, work product immunity doctrine, common interest privilege, or any other applicable privilege, immunity, or restriction on discovery.
 9. Google objects to the Topics to the extent they seek testimony regarding information that is not within Google's knowledge.
 10. Google objects to the Topics to the extent that they are vague, ambiguous, unlimited in time or scope, or fails to identify the testimony sought with reasonable particularity.
 11. Google objects to the Topics to the extent they seek testimony regarding information that is not proportionate to the needs of the case, not relevant to any party's claims or defenses, or not reasonably calculated to lead to the discovery of admissible evidence.
 12. Google objects to the Topics to the extent that they seek testimony or impose obligations beyond what is permissible under applicable law.

Additional Objections

1. Google objects to the Subpoena to the extent it seeks to impose an undue burden on a disinterested non-party. Google further objects to the Subpoena to the extent it seeks information already in a party's possession or available to a party from some other source (including public sources) that is more convenient, less burdensome or less expensive. Google objects to the Subpoena to the extent it seeks electronically stored information that is not reasonably accessible to Google.
2. Google objects to the Subpoena to the extent it seeks information that is not proportionate to the needs of the case, not relevant to any party's claims or defenses, or not reasonably calculated to lead to the discovery of admissible evidence.
3. Google objects to the Subpoena to the extent it specifies a date of production or date of deposition that is unreasonable and unduly burdensome, including because it may not afford Google time to provide sufficient notice to the user.
4. Google objects to the Subpoena to the extent that it is vague, ambiguous, unlimited in time or scope, or fails to identify the information sought with reasonable particularity. Accordingly, Google further objects to the Subpoena to the extent it purports to require Google to preserve the requested information. Therefore you should not assume that Google will undertake steps to preserve any information in response to your Subpoena. Google is willing to meet and confer to discuss any preservation request.
5. Google objects to the Subpoena to the extent it seeks to impose obligations on Google

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- beyond what is permissible under applicable law.
6. Google objects to the subpoena to the extent it seeks information in the possession, custody or control of any other entity besides Google LLC.
 7. Google objects to the Subpoena to the extent it requests information created subsequent to the issuance of the legal process.
 8. Non-party Google is located in Santa Clara County, California, which is also where Google resides. Google therefore objects to the Subpoena because it designates a place for compliance that is more than 100 miles from its headquarters. *See* Fed. R. Civ. P. 45(c)(2)(A).
 9. Google also objects to the Subpoena to the extent it seeks information containing confidential financial, proprietary or trade secret information, or any information subject to a confidentiality agreement or protective order.
 10. Google further objects to the Subpoena to the extent it seeks information protected by any privilege, including the attorney-client privilege, work product immunity doctrine, common interest privilege, or any other applicable privilege, immunity, or restriction on discovery.

Google reserves the right to further object to the Subpoena in any additional response.

If you have any questions, please feel free to contact the undersigned at the Legal Support Department alias at GOOGLE-LEGAL-SUPPORT@GOOGLE.COM. Additionally, should you wish to seek any judicial relief in connection with this matter, Google requests the opportunity to meet and confer in advance of any such filing. Thank you.

Regards,

Google Legal Investigations Support

EXHIBIT C-2

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURTfor the
Northern District of California

DEBRA NELSON

Plaintiff

v.

Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and
Air Solutions, SHANE LANIER AND SHANE SABLITSKY*Defendant*Civil Action No. **CV 25-80346 MISC****SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION**To: Google 1600 Amphitheatre Parkway, Mountain View, CA 94043
c/o Corporation Service Company (CSC), 2710 Gateway Oaks Drive, Suite 150N Sacramento, CA 95833*(Name of person to whom this subpoena is directed)*

☒ **Production:** YOU ARE COMMANDED to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Attached

Place: Debra Nelson

Date and Time:

10/31/2025 5:00 pm EST

☐ **Inspection of Premises:** YOU ARE COMMANDED to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:

Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date:

OCT 31 2025**MARK B. BUSBY**

CLERK OF COURT

OR

*Signature of Clerk or Deputy Clerk**Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* _____, who issues or requests this subpoena, are:

Debra Nelson, Pro Se, _____

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

12/3/25, 3:58 PM

Gmail - Notice of Procedural Issue — Google Subpoena (Issued October 31, 2025)

EXHIBIT C-3



Debra Nelson <[REDACTED]>

Notice of Procedural Issue — Google Subpoena (Issued October 31, 2025)

3 messages

Debra Nelson <[REDACTED]>
To: vkdcrd@cand.uscourts.gov

Wed, Dec 3, 2025 at 2:10 PM

Judge,

I am writing to notify the Court of a procedural issue regarding the enforceable subpoena issued to Google on October 31, 2025. I appeared in person at the Clerk's Office and the subpoena was properly signed and issued that same day.

Today, December 2, 2025, I contacted the Clerk by phone and was informed for the first time that the subpoena was "withdrawn" or "invalidated" on November 6, 2025 because the due date on the subpoena was the same day it was issued. I did not receive any notice of this action—no email, no mailing, and no docket entry. Google also did not inform me that the subpoena had been invalidated.

Because this subpoena is part of ongoing federal discovery in my related case in the District of South Carolina, I respectfully request clarification as to whether a written order exists and why no notice was provided. I am copying opposing counsel to ensure full transparency.

Thank you,
Debra Nelson
Pro Se Plaintiff

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Wed, Dec 3, 2025 at 2:23 PM

[Quoted text hidden]

CRD VKD <VKDCRD@cand.uscourts.gov>
To: Debra Nelson <[REDACTED]>

Wed, Dec 3, 2025 at 2:35 PM

Greetings Ms. Nelson,

Thank you for your message. I am reviewing your docket now, and I see that this docket entry regarding the issuance of your Subpoena was modified on November 6 to notify you that the Subpoena has been withdrawn as it has been invalidated and unissued by the Clerk's Office. The docket entry also states that you have been mailed this notice by First Class Mail to your South Carolina address provided by you.

Here is a screenshot of your public docket, pointing out what I have described to you:

Date Filed	#	Docket Text
10/31/2025	2	***SUBPOENA WITHDRAWN- INVALIDATED AND UNISSUED BY CLERK'S OFFICE*** Subpoena issued as to Google, LLC. (mbc, COURT STAFF) (Filed on 10/31/2025) Sup and CM/ECF Participants have been mailed by First Class Mail to the addresses of record listed on the Notice of Electronic Filing (NEF) Modified on 11/6/2025 (kjp, COURT STAFF). (Entered: 11/06/2025)
10/31/2025	1	MISCELLANEOUS MATTER: Motion for Issuance of Subpoena (Filing fee \$ 52, receipt number 511019580.). Filed by Debra Nelson. (Attachments: # <u>1</u> Receipt)(mbc, COURT STAFF) (Filed on 10/31/2025) (Entered: 11/06/2025)

This image shows your full docket, so no written order has been filed in this case.

Thank you,

12/3/25, 3:58 PM

Gmail - Notice of Procedural Issue — Google Subpoena (Issued October 31, 2025)

EXHIBIT C-3**Steven Chilton**

Courtroom Deputy



to Honorable Virginia K. DeMarchi

United States District Court

Northern District of California

<https://cand.uscourts.gov>steven_chilton@cand.uscourts.gov

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, December 3, 2025 11:11 AM
To: CRD VKD <VKDCRD@cand.uscourts.gov>
Subject: Notice of Procedural Issue — Google Subpoena (Issued October 31, 2025)

CAUTION - EXTERNAL:

[Quoted text hidden]

CAUTION - EXTERNAL EMAIL: This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

EXHIBIT D MS-1

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. ET AL.,

Defendants.

CASE NO. 2:25-mc-00074-JHC

ORDER

Before the Court is pro se Plaintiff's "Motion for Issuance of Enforceable Federal Subpoena to Microsoft Corporation Under Fed. R. Civ. P. 45(a)(2)." Dkt. # 1.

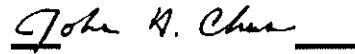
The Court ORDERS Microsoft to respond to the motion by Monday, November 24, 2025. Plaintiff may file a reply by December 1, 2025.

The Court ORDERS Plaintiff to *immediately* email a copy of this Order to counsel for Microsoft, including Charlotte Wasserstein (at charlottewasserstein@dwt.com) and other Microsoft attorneys whose names appear on Plaintiff's materials as well as counsel for Defendants.

The Court DIRECTS the Clerk to re-note this motion for December 1, 2025.

EXHIBIT D MS-1

Dated this 14th day of November, 2025.



John H. Chun

United States District Judge

EXHIBIT D MS-2

SUPERIOR COURT FOR THE STATE OF WASHINGTON
KING COUNTY

DEBRA NELSON,

Plaintiff, Case No. 25-2-27749-6 SEA

v.

MICROSOFT CORPORATION'S
CURTISS WRIGHT ELECTRO
WRIGHT STEAM AND AIR SOLUTIONS,

OBJECTIONS TO SUBPOENA

MECHANICAL CORP. D/B/A CURTISS-

STEPHANIE LANIER, AND SHANE
SABLOTSKY,

Defendants.

EXHIBIT D MS-2

Pursuant to Washington Superior Court Civil Rule ("CR") 45, nonparty Microsoft Corporation ("Microsoft") makes the following objections to the subpoena from Debra Nelson ("Plaintiff") in the above-referenced matter. Microsoft's objections and responses are based on its investigation to date. Microsoft expressly reserves the right to modify and supplement these objections and responses if additional information or documents are located by Microsoft. Microsoft assumes no obligation to supplement its responses, beyond those permitted by applicable court rules, if any. To the extent that a meet and confer regarding any of these objections is necessary, please contact undersigned counsel.

EXHIBIT D MS-2**I. GENERAL OBJECTIONS**

1
2 **1. Washington Shield Law.** Microsoft objects to the subpoena to the extent
3 it seeks records or information that Microsoft is barred from producing under Engrossed
4 Substitute House Bill 1469, 2023 Reg. Sess. (Wash. 2023) (the “Shield Law”). *See also*
5 RCW 5.51.020. To comply with the requirements of the Shield law you must attest under
6 penalty of perjury that you are not seeking documents, information, testimony, or other
7 assistance relating to an investigation into, or the enforcement of, a law that asserts
8 criminal or civil liability for the provision, receipt, attempted provision or receipt,
9 assistance in provision or receipt, or attempted assistance in the provision or receipt of
10 protected health care services that are lawful in the state of Washington.

11 **2. Subscriber Notification.** Upon proper service of a nonparty subpoena
12 seeking business records, Microsoft implements basic procedures to attempt to locate and
13 preserve the information sought. If the subpoena requests subscriber information, Internet
14 Protocol address history logs, or similar associated data (collectively “Subscriber Data”),
15 pursuant to industry standard and court-approved practice, after locating the account and
16 preserving the responsive data, Microsoft notifies the subscriber of the subpoena and
17 permits the subscriber a 14-day period during which the subscriber may formally
18 challenge or otherwise limit the subpoena requests by making an appropriate motion
19 before the relevant court. Upon expiration of the 14-day waiting period, if the subscriber
20 has failed to take timely action and if there are no valid reasons for Microsoft to object to
21 the subpoena, Subscriber Data, if available, is typically produced, along with a document
22 certifying its authenticity.

23 Following internal review and processing procedures, Microsoft initiates the processes
24 necessary to locate and preserve the data requested and, where active accounts are identified,
25 attempts to notify the subscriber(s) of your Subpoena and of the 14-day period to take appropriate
26 court action.

EXHIBIT D MS-2

27 **3. Preservation of Content.** When content data is requested, Microsoft
28 implements measures to electronically preserve content data pending pursuit of a court
29 order or account holder consent. However, given the frailty of electronic data, Microsoft
30 cannot guarantee that no data will be lost as a natural function of standard retrieval and
31 preservation processes. Further, please note that Microsoft cannot preserve the data
32 indefinitely in anticipation of further action. Unless Microsoft receives written
33 notification of intent to pursue account holder consent for content data within 45 days of
34 the date of this letter, Microsoft may permit the electronic mail content data preserved in
35 response to your request to be deleted as a function of routine document maintenance.

36 As Microsoft is not a party to this matter and has no interest in its outcome, it is neither
37 Microsoft's intent, nor its desire, to hinder or delay production of the documents requested by
38 you. Microsoft has implemented the procedural requirements noted above in order to conform
39 with what it believes to be proper under applicable local, state, and federal laws and public
40 policies.

41 **4. Explanation of Inactive And NSU Status Determinations.** Typically
42 all email content and Internet Protocol Log data associated with accounts that are
43 affirmatively closed by their account holders, or with accounts that are left inactive for
44 approximately 270 days, are permanently deleted. The remaining "shell" account
45 containing only the registration information provided by the subscriber is labeled
46 "inactive." After an additional 95 days, the shell account is also permanently deleted,
47 and the email address returned to the pool of available addresses.

48 **5. Deleted Messages.** Please be advised that contrary to what appears to be
49 a popular conception, Microsoft does not maintain comprehensive archives of
50 communication content sent from or received by any of its Outlook, Hotmail, or MSN
51 service accounts. All communication content possessed by Microsoft with regard to any
52 given user account consists only of those emails, messages or recordings accessible to the

EXHIBIT D MS-2

53 account holder. Microsoft does not maintain a database of deleted emails, messages,
54 recordings or audio.

55 **6. Objection to Production of Material Subject to Foreign Data Privacy**
56 **Law.** Microsoft objects to the production of information sought by your subpoena to the
57 extent it is subject to foreign data privacy laws. This includes without limitation EU
58 Regulation 2016/679, the General Data Protection Regulation ("GDPR") or EU General
59 Data Protection Regulation (Regulation (EU) 2016/679) as amended and transposed into
60 the laws of the United Kingdom pursuant to the European Union (Withdrawal) Act 2018
61 and the European Union (Withdrawal
62 Agreement) Act 2020 ("UK GDPR"), or other foreign data privacy laws that might apply.
63 Microsoft is determining whether the data sought by your subpoena is subject to any such law;
64 the process for making this determination takes approximately two weeks. Subject to, and without
65 waiver of this objection, Microsoft may produce information responsive to your subpoena or that
66 Microsoft determines is not subject to any such law and/or with the valid consent of the account
67 holder.

68 **7. Contrary to the Electronic Communications Privacy Act.** Microsoft
69 objects to the subpoena to the extent it seeks communications protected from disclosure
70 by the Electronic Communications Privacy Act ("ECPA"), 18 U.S.C. §2510 to §2711,
71 which prohibits the disclosure of communication data in electronic storage without the
72 consent of the account holder. It appears that Microsoft falls within either the definition
73 of a "person or entity providing an electronic communication service to the public" or "a
74 person or entity providing remote computing service to the public." 18 U.S.C. §2702(a),
75 (b). If either of these provisions apply to Microsoft's Services, it would appear that they
76 also prohibit Microsoft from divulging communication data in electronic storage because
77 it does not appear that any of the exemptions in 18 U.S.C. §2702(b) are applicable in this
78 case. Further, the exemptions under 18 U.S.C. §2702(b) do not authorize Microsoft to
79 divulge such content in response to a civil subpoena or even a court order.

EXHIBIT D MS-2

80 As you will see from your review of this very complicated privacy legislation, if our
81 concern is correct that the ECPA prohibits the disclosure of communication data in electronic
82 storage by Microsoft's Services without the consent of the account holder, the unauthorized
83 disclosure of such content could subject Microsoft and you to serious civil and criminal penalties.
84 18 U.S.C. §2707.

85 We are not aware of any controlling authority holding that services such as Microsoft's
86 Services are permitted by the ECPA to disclose communication data in electronic storage in
87 response to a civil subpoena. To the contrary, courts have ruled that contents of communications
88 may not be disclosed to civil litigants even when presented with a civil subpoena. *O'Grady v.*
89 *Superior Court*, 139 Cal.App.4th 1423, 1448 (Cal. App. 2006); *accord* The U.S. Internet Service
90 Provider Association, *Electronic Evidence Compliance—A Guide for Internet Service Providers*,
91 18 BERKELEY TECH. L. J. 945, 965 (2003) ([No Stored Communications Act provision]
92 "permits disclosure pursuant to a civil discovery order unless the order is obtained by a
93 government entity. ... [T]he federal prohibition against divulging communication data remains
94 stark, and there is no obvious exception for a civil discovery order on behalf of a private party.");
95 *see also Federal Trade Comm'n v. Netscape Communications Corp.*, 196 F.R.D. 559, 561 (N.D.
96 Cal. 2000) ("There is no reason for the court to believe that Congress could not have specifically
97 included discovery subpoenas in the statute had it meant to."); *In re Subpoena Duces Tecum to*
98 *AOL, LLC*, 550 F.Supp.2d 606 (E.D. Va. 2008) ("Agreeing with the reasoning in *O'Grady*, this
99 Court holds that State Farm's subpoena may not be enforced consistent with the plain language
100 of the Privacy Act because the exceptions enumerated in § 2702(b) do not include civil discovery
101 subpoenas."); *J.T. Shannon Lumber Co., Inc. v. Gilco Lumber Inc.*, 2008 WL 4755370 (N.D.
102 Miss. 2008) (holding there is no "exception to the [SCA] for civil discovery or allow for coercion
103 of defendants to allow such disclosure."); *Viacom Intern. Inc. v. Youtube Inc.*, 253 F.R.D. 256
104 (S.D.N.Y. 2008) ("ECPA § 2702 contains no exception for disclosure of [the content of]
105 communications pursuant to civil discovery requests.")

EXHIBIT D MS-2

As you can understand, given the severity of the penalties under the ECPA, we cannot release email content in response to your subpoena without firm assurance that the requirements of the ECPA are met. Therefore, until we are provided with the valid, written consent of the subscriber(s), we must object.

8. Failure to Reduce Burden on Nonparty. Microsoft objects to the subpoena for failing to take reasonable efforts to reduce the burden on nonparty Microsoft. *See* Washington Civil Rule 45(c). In particular, Microsoft objects to the subpoena to the extent certain information sought is in the possession, custody, or control of the parties to the litigation. *See e.g., Rembrandt Patent Innovations v. Apple, Inc.*, 2015 WL 4393581, at *2 (W.D. Tex. July 15, 2015) (holding subpoena issued to non-party is unduly burdensome “until and unless Plaintiffs can establish they are unable to obtain the requested information from the Defendant”); *In re Allergan*, 2016 WL 5922717, at *9 (C.D. Cal. Sept. 23, 2016) (“Courts are particularly reluctant to require a nonparty to provide discovery that can be produced by a party” (citation omitted)); *Nidex Corp. v. Victor Co. of Japan*, 249 F.R.D. 575, 577 (N.D. Cal. 2007) (“There is simply no reason to burden nonparties when the documents sought are in possession of the party defendant.”); *Moon v. SCP Pool Corp.* 232 F.R.D. 633, 638 (C.D. Cal. 2005) (“[T]hese requests all pertain to defendant, who is a party, and, thus, plaintiffs can more easily and inexpensively obtain the documents from defendant, rather than from [the] nonparty”) (citing *Dart Indus. Co. v. Westwood Chem. Co.*, 649 F.2d 646, 649 (9th Cir. 1980)); *Haworth, Inc. v. Herman Miller, Inc.*, 998 F.2d 975, 978 (Fed. Cir. 1993) (affirming denial of motion to compel production from nonparty, holding “the district court could properly require [defendant] to seek discovery from its party opponent before burdening the nonparty [] with [an] ancillary proceeding”). Obtaining records from a party also allows the parties to the litigation to directly address any confidentiality and privacy issues.

9. Electronically Stored Information. Microsoft objects to the subpoena to the extent it seeks production of electronically stored information from sources not

EXHIBIT D MS-2

reasonably accessible (e.g., legacy systems, backup media, temporary or ambient data), in light of the burdens or costs required to locate, restore, review, and produce whatever responsive information may be found. Known, difficult-to-access sources that may contain potentially responsive information (others may exist and become apparent once the scope of the information sought by the Subpoena is properly defined), but which Microsoft is neither searching nor producing because they are not reasonably accessible without undue burden, fall under the categories set out below: current disaster recovery media, obsolete back up media, legacy systems, sources requiring computer forensics to access, databases that are structured to hold or report information in certain formats and which cannot readily provide different data or data in different configurations, and source code. Microsoft is not able to retrieve information from many of these sources, or even confirm with certainty whether any responsive information in fact exists on the sources, without incurring substantial undue burden or cost.

10. Timing of Compliance. Microsoft requires approximately eight weeks to process new requests for Subscriber Data. Accordingly, we ask that you extend the deadline of your subpoena to permit Microsoft to properly comply with its internal procedures. In the event that you do not agree, we must object to your subpoenas on the ground that it does not permit a reasonable time for response.

11. Prepayment of Costs. Microsoft requires the prepayment of its reasonable costs of complying with your subpoena before the production of documents. If prepayment is not remitted, Microsoft reserves the right to object to your subpoena and withhold the production of documents on the ground that the request is unduly costly and burdensome to Microsoft.

Microsoft's third-party fee schedule is available upon request.

12. Reservation of Rights. These objections apply to each request in the subpoena.

Microsoft reserves its right to supplement, amend, correct, or modify its responses herein.

EXHIBIT D MS-2**II. RESPONSES AND OBJECTIONS TO REQUESTS FOR PRODUCTION**

Microsoft incorporates the above objections in their entirety into each specific objection below. Microsoft's specific objections are made for purposes of clarity and emphasis. Microsoft does not waive its above objections with respect to any of the subpoena's requests below. Microsoft will not produce documents without (1) prepayment of Microsoft's reasonable costs for complying with the subpoena; and (2) an attestation that complies with Washington's Shield Law.

Microsoft objects to this request for failing to take reasonable efforts to reduce the burden on nonparty Microsoft. *See* Washington Civil Rule 45(c). In particular, Microsoft objects to this request to the extent the information sought is in the possession, custody, or control of the account holder(s).

REQUEST FOR PRODUCTION NO. 1:

All logs and reports of unauthorized or remote access to the above-listed email accounts, including IP addresses, dates, times, geographic locations, and device identifiers associated with each access event.

RESPONSE TO REQUEST FOR PRODUCTION NO. 1:

Microsoft interprets this request as seeking Internet Protocol (IP) address history logs associated with the account(s): denelson62@hotmail.com, denelson62@hotmail.com, and NubianQueen2024@outlook.com. Microsoft objects to this request in that it seeks documents that are not relevant, necessary, and proportional to the needs of the case and places a disproportionate and undue burden on a third party because (1) the terms and phrases "reports of unauthorized or remote access," "geographic locations," and "device identifiers associated with each access event" are vague and ambiguous; (2) it seeks information more easily obtained from a party to the litigation or the account holder(s); (3) it fails to take reasonable efforts to reduce

EXHIBIT D MS-2

the burden on nonparty Microsoft; and (4) Plaintiff has failed to explain why such a search is necessary and proportional to the needs of the case.

Notwithstanding the above objections, after a reasonable search, Microsoft was not able to locate data responsive to this request. Microsoft considers its obligation under the subpoena satisfied. Microsoft will not produce documents in response to this request.

REQUEST FOR PRODUCTION NO. 2:

All logs reflecting system blocks, account overrides, password resets, and remote activations or forced sign-outs.

RESPONSE TO REQUEST FOR PRODUCTION NO. 2:

Microsoft objects to this request in that it seeks documents that are not relevant, necessary, and proportional to the needs of the case and places a disproportionate and undue burden on a third party because (1) the terms and phrases “[a]ll logs,” “system blocks,” “account overrides,” “password resets,” “remote activations,” and “forced sign-outs” are vague and ambiguous; (2) it seeks information more easily obtained from a party to the litigation or the account holder(s); (3) it fails to take reasonable efforts to reduce the burden on nonparty Microsoft; and (4) Plaintiff has failed to explain why such a search is necessary and proportional to the needs of the case.

Microsoft will not produce documents in response to this request.

REQUEST FOR PRODUCTION NO. 3:

Complete documentation of any and all agreements, policies, or procedures with government agencies or third parties that permit or facilitate external access to the user data associated with these accounts.

RESPONSE TO REQUEST FOR PRODUCTION NO. 3:

Microsoft objects to this request in that it seeks documents that are not relevant, necessary, and proportional to the needs of the case and places a disproportionate and undue burden on a third party because (1) the terms and phrases “[c]omplete documentation,” “agreements,” “policies,” “procedures,” “government agencies or third parties,” and “permit or facilitate external access to

EXHIBIT D MS-2

the user data associated with these accounts” are vague and ambiguous; (2) it seeks information more easily obtained from a party to the litigation or the account holder(s); (3) it fails to take reasonable efforts to reduce the burden on nonparty Microsoft; and (4) Plaintiff has failed to explain why such a search is necessary and proportional to the needs of the case.

Microsoft will not produce documents in response to this request.

REQUEST FOR PRODUCTION NO. 4:

All account authentication and security event logs, including but not limited to, successful and failed login attempts, changes to security settings, and modifications to recovery email addresses or phone numbers.

RESPONSE TO REQUEST FOR PRODUCTION NO. 4:

Microsoft objects to this request in that it seeks documents that are not relevant, necessary, and proportional to the needs of the case and places a disproportionate and undue burden on a third party because (1) the terms and phrases “[a]ll account authentication and

EXHIBIT D MS-2

1 security event logs,” “changes to security settings,” and “modification to recovery email
2 addresses or phone numbers” are vague and ambiguous; (2) it seeks information more
easily
3 obtained from a party to the litigation or the account holder(s); (3) it fails to take
reasonable
4 efforts to reduce the burden on nonparty Microsoft; and (4) Plaintiff has failed to explain
why
5 such a search is necessary and proportional to the needs of the case.
6 Microsoft will not produce documents in response to this request.

7
8 DATED this 13th day of October, 2025.
DAVIS WRIGHT TREMAINE LLP
9 Attorneys for Microsoft Corporation
10

11 By /s/ James Howard
James Howard, WSBA #37259
12 Charlotte S. Wasserstein California State
Bar No. 279442
920 Fifth Avenue, Suite 3300
13 Seattle, WA 98104-1610
Telephone: 310-425-1025
14 Email: charlottewasserstein@dwt.com

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EXHIBIT D MS-2

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CERTIFICATE OF SERVICE

I hereby certify that on October 13, 2025, I caused the foregoing document to be served

by electronic mail to the following recipient(s):

Debra Nelson

[REDACTED]

[REDACTED]

[REDACTED]

DATED this 13th day of October, 2025.

DAVIS WRIGHT TREMAINE LLP
Attorneys for Microsoft Corporation

Davis Wright Tremaine LLP LAW
OFFICES

920 Fifth Ave., Ste. 3300, Seattle, WA 98104-1610
206-622-3150 main • 206-757-7700 fax

EXHIBIT D MS-2

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By /s/ James Howard
James Howard, WSBA #37259
Charlotte S. Wasserstein California State
Bar No. 279442
920 Fifth Avenue, Suite 3300
Seattle, WA 98104-1610
Telephone: 310-425-1025
Email: charlottewasserstein@dwt.com

EXHIBIT D - MS-3**Plaintiff's Meet and Confer Letter****Re: Subpoena to Microsoft Corporation****Date:** October 1, 2025**Via Email**

CharlotteWasserstein@dwt.com

JamesGamboa@dwt.com

AlexEppenauer@dwt.com

Re: *Nelson v. Curtiss-Wright Electro Mechanical Corp., et al.*

Civil Action No. 2:25-cv-00405-DCN-MHC
U.S. District Court, District of South Carolina

Dear Counsel:

Pursuant to Fed. R. Civ. P. 37 and Local Rule 7.02, this letter serves as Plaintiff's effort to meet and confer regarding Microsoft Corporation's objections, dated September 19, 2025, to Plaintiff's subpoena duces tecum issued September 12, 2025, and domesticated in King County Superior Court under RCW 5.51.

Background

On September 12, 2025, Plaintiff served a subpoena on Microsoft Corporation seeking non-content records (logs, authentication history, IP access data, and related account security information) for Plaintiff's personal Microsoft accounts. This request is narrowly tailored and directly relevant to Plaintiff's claims, as it seeks to identify unauthorized access events that impacted Plaintiff's email accounts during the period at issue.

Issues

Microsoft has objected broadly to the subpoena on grounds of burden, ECPA restrictions, and place of compliance. Plaintiff responds as follows:

1. **Place of Compliance:** Plaintiff has already domesticated the subpoena in King County Superior Court, correcting any place-of-compliance concerns.
2. **ECPA Objections:** Plaintiff does not seek content; only non-content metadata and logs, which courts routinely hold are not barred by ECPA when obtained via subpoena with subscriber consent.
3. **Burden:** Plaintiff has provided her Shield Law attestation and is willing to prepay reasonable costs once Microsoft provides an itemized fee schedule.

Request to Confer

EXHIBIT D - MS-3

To avoid unnecessary motion practice, Plaintiff requests that Microsoft agree to:

1. Produce non-content records responsive to the subpoena (IP login history, authentication events, password reset and security-change logs, forced sign-outs/account overrides).
2. Provide an itemized fee estimate and payment instructions within 7 days.
3. Begin production on a **rolling basis** so that Plaintiff may receive at least partial records before the **November 5, 2025 discovery cutoff**.
4. Provide a Rule 902(11) certification with the records.

Response Deadline

Please confirm Microsoft's position by **October 6, 2025**. If no agreement is reached, Plaintiff will file a Motion to Compel in the District of South Carolina.

Thank you for your prompt attention.

Respectfully,

/s/ Debra Nelson
Plaintiff, Pro Se



EXHIBIT E

VERIZON SECURITY SUBPOENA COMPLIANCE

189 WASHINGTON VALLEY ROAD

BEDMINSTER NJ 07921

Phone: 800-451-5242 Fax: 833-667-0028

VERIZON CONFIDENTIAL

September 5, 2025

DEBRA NELSON - PRO SE



Verizon Case #: 25505588

Docket / File #: 2:25-CV-00405-DCN-MHC

Requested Target: 843-277-4142, 843-813-1335

Dear DEBRA NELSON:

Verizon Subpoena Compliance is in receipt of the attached request. Please note the following:

(x) Pro Se requests are returnable to the court only and the court address must be in the body of the subpoena. Please provide the court address as the place of production on the legal request.

(x) There is an associated processing fee of \$75.00 per hour, plus shipping.

Respectfully,

VERIZON SECURITY SUBPOENA COMPLIANCE

Enclosed

EXHIBIT F

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURTfor the
District of Illinois**DEBRA NELSON***Plaintiff*

v.

Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and
Air Solutions, STEPHANIE LANIER and SIANE SABLITSKY*Defendant***1:25-cv-13489****Judge Martha M. Pacold****Magistrate Judge Beth W. Jantz****Random/Cat. 5****SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION**

To:

Motorola Mobility LLC c/o
C T Corporation System, 208 S. LaSalle Street, Suite 814, Chicago, Illinois 60604*(Name of person to whom this subpoena is directed)*

☒ **Production:** YOU ARE COMMANDED to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Schedule A

Place: Debra Nelson [REDACTED]	Date and Time: 11/15/2025 5:00 pm EST
-----------------------------------	---------------------------------------

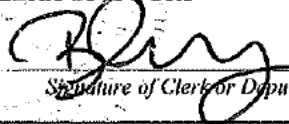
☐ **Inspection of Premises:** YOU ARE COMMANDED to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:
--------	----------------

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: 11/4/2025

CLERK OF COURT



Signature of Clerk or Deputy Clerk

OR

Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) _____, who issues or requests this subpoena, are:

Debra Nelson Plaintiff, Pro Se [REDACTED]

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).



Debra Nelson <[REDACTED]>

Nelson v. Curtiss Wright Electro Mechanical Corp. (South Carolina District Court, Case No. 2:25-CV-00405-DCN-MHC)

6 messages

von der Lancken, Nicholas <NvonderLancken@dykema.com>

Fri, Nov 21, 2025 at 4:58 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

Hi Ms. Nelson,

Please allow this to serve as American Honda Motor Co., Inc.'s formal response to the subpoena you issued for the matter referenced in the subject line (and attached to this email). I am attaching a declaration from the appropriate individual confirming that the documents requested in your subpoena are not in AHM's possession as they do not exist. AHM, therefore, has no responsive documents to provide.

Please let me know if you have any questions about the attached. Thank you.

Nicholas O. von der Lancken
Senior Attorney

D 213-457-1738
NvonderLancken@dykema.com • dykema.com

BIO VCARD LINKEDIN

444 South Flower Street, Suite 2200
Los Angeles, California 90071

Dykema

*** Notice from Dykema Gossett PLLC: This Internet message may contain information that is privileged, confidential, and exempt from disclosure. It is intended for use only by the person to whom it is addressed. If you have received this in error, please (1) do not forward or use this information in any way; and (2) contact me immediately.

Neither this information block, the typed name of the sender, nor anything else in this message is intended to constitute an electronic signature unless a specific statement to the contrary is included in this message.

2 attachments

Nelson, Debra (Subpoena (AHM) - Automobile).pdf
364K

Custodian of Records Declaration (executed).pdf
19K

Debra Nelson <[REDACTED]>

Fri, Nov 21, 2025 at 5:11 PM

EXHIBIT G

To: "von der Lancken, Nicholas" <NvonderLancken@dykema.com>
Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

Did you inspect the evidence on the flash drive?

[Quoted text hidden]

 DYK21006-logo_RGB_FINAL(Custom)_d7656d32-7389-4b1f-8183-04753cc3fce5.png
4K

von der Lancken, Nicholas <NvonderLancken@dykema.com>

Fri, Nov 21, 2025 at 5:20 PM

To: Debra Nelson <[REDACTED]>
Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

Ms. Nelson,

You lodged a physical flash drive with the Court and did not provide us with whatever was on there beyond sending some photographs. I have no ability to get the Court's physical files. But regardless of what is on that flash drive and what photographs or videos you have taken, it does not mean that any information was transmitted to American Honda Motor Co., Inc. They have reviewed their files and confirmed that the information you are requesting does not exist.

Nicholas O. von der Lancken
Senior Attorney

D 213-457-1738
NvonderLancken@dykema.com • dykema.com

BIO VCARD LINKEDIN

444 South Flower Street, Suite 2200
Los Angeles, California 90071



From: Debra Nelson <[REDACTED]>
Sent: Friday, November 21, 2025 2:11 PM
To: von der Lancken, Nicholas <NvonderLancken@dykema.com>
Cc: Samples, T. Chase (Greenville) <chase.samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <joseph.valenza@jacksonlewis.com>; Kopelevich, Dmitriy <DKopelevich@dykema.com>
Subject: Re: Nelson v. Curtiss Wright Electro Mechanical Corp. (South Carolina District Court, Case No. 2:25-CV-00405-DCN-MHC)

[Quoted text hidden]

Debra Nelson <[REDACTED]>

Fri, Nov 21, 2025 at 5:37 PM

EXHIBIT G

To: "von der Lancken, Nicholas" <NvonderLancken@dykema.com>
Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

If I didn't provide it was because I couldn't. It's your responsibility after I told you to retrieve it so you could respond appropriately. You neglected your duties and chose to respond without all of the evidence. You are a professional and it's not my responsibility to hold your hand.

[Quoted text hidden]

von der Lancken, Nicholas <NvonderLancken@dykema.com>

Fri, Nov 21, 2025 at 6:00 PM

To: Debra Nelson <[REDACTED]>
Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

Hi Ms. Nelson,

While I do not have the ability the access the Court's physical files, whatever videos you have do not change the fact that American Honda does not the information or documents you are requesting. As you were previously told and the declaration states, the vehicle does not have a telematic control unit.

Nicholas O. von der Lancken
Senior Attorney

D 213-457-1738
NvonderLancken@dykema.com • dykema.com

BIO VCARD LINKEDIN

444 South Flower Street, Suite 2200
Los Angeles, California 90071

Dykema

From: Debra Nelson <[REDACTED]>
Sent: Friday, November 21, 2025 2:37 PM
To: von der Lancken, Nicholas <NvonderLancken@dykema.com>
Cc: Samples, T. Chase (Greenville) <chase.samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <joseph.valenza@jacksonlewis.com>; Kopelevich, Dmitriy <DKopelevich@dykema.com>
Subject: Re: Nelson v. Curtiss Wright Electro Mechanical Corp. (South Carolina District Court, Case No. 2:25-CV-00405-DCN-MHC)

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "von der Lancken, Nicholas" <NvonderLancken@dykema.com>

Sun, Nov 23, 2025 at 11:18 AM

Cc: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>, "Kopelevich, Dmitriy" <DKopelevich@dykema.com>

You can tell this to the Feds. Have a good day.

[Quoted text hidden]

EXHIBIT G



Debra Nelson <nelsondebra62@gmail.com>

Proposed Order

12 messages

Debra Nelson <[REDACTED]>

Thu, Oct 30, 2025 at 12:57 PM

To: rachel_evans@wawd.uscourts.gov



Microsoft Proposed Order.pdf
182K

Rachel Evans <Rachel_Evans@wawd.uscourts.gov>

Thu, Oct 30, 2025 at 1:07 PM

To: Debra Nelson <nelsondebra62@gmail.com>

Hi Ms. Nelson,

Thank you, document received.

Rachel Evans

Intake Clerk

U.S. District Court, Western District of WA

206.370-8435

From: Debra Nelson <[REDACTED]>

Sent: Thursday, October 30, 2025 9:58 AM

To: Rachel Evans <Rachel_Evans@wawd.uscourts.gov>

Subject: Proposed Order

CAUTION - EXTERNAL:

On Wed, Nov 12, 2025 at 1:16 PM Debra Nelson <[REDACTED]> wrote:

That is an unreasonable extended judicial review. I am going to file a motion with the court. More than 2 weeks to issue is unacceptable

On Wed, Nov 5, 2025 at 7:58 PM Rachel Evans <Rachel_Evans@wawd.uscourts.gov> wrote:

Good evening,

No order has been issued for the issuance of the subpoena. As I mentioned before, there's a noting date of 0f 11/14. Once an order is issued, I will notify you. Thank you.

Rachel Evans

Intake Clerk

U.S. District Court, Western District of WA

206.370.8435

rachel_evans@wawd.uscourts.gov

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, November 5, 2025 8:58 AM
To: Rachel Evans <Rachel_Evans@wawd.uscourts.gov>
Subject: Re: Proposed Order

CAUTION - EXTERNAL:

Hello checking to see if the clerk has issued the subpoena yet

On Mon, Nov 3, 2025 at 4:24 PM Debra Nelson <[REDACTED]> wrote:

CAUTION - EXTERNAL:

What's the name of the Judge

On Wed, Nov 12, 2025 at 1:16 PM Debra Nelson <[REDACTED]> wrote:

That is an unreasonable extended judicial review. I am going to file a motion with the court. More than 2 weeks to issue is unacceptable

On Wed, Nov 5, 2025 at 7:58 PM Rachel Evans <Rachel_Evans@wawd.uscourts.gov> wrote:

Good evening,

No order has been issued for the issuance of the subpoena. As I mentioned before, there's a noting date of 0f 11/14. Once an order is issued, I will notify you. Thank you.

Rachel Evans

Intake Clerk

U.S. District Court, Western District of WA

206.370.8435

rachel_evans@wawd.uscourts.gov

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, November 5, 2025 8:58 AM
To: Rachel Evans <Rachel_Evans@wawd.uscourts.gov>
Subject: Re: Proposed Order

CAUTION - EXTERNAL EMAIL: This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

Debra Nelson [REDACTED]
To: Rachel Evans <Rachel_Evans@wawd.uscourts.gov>

Fri, Nov 21, 2025 at 9:54 AM

I was told that the subpoena would be issued by November 20th. It is now November 21st. Can you give me an update?

On Wed, Nov 12, 2025, 7:20 PM Debra Nelson <nelsondebra62@gmail.com> wrote:

There is nothing to rule on. I submitted a subpoena and it's been over 2 weeks under a Judicial review

On Wed, Nov 12, 2025, 6:28 PM Rachel Evans <Rachel_Evans@wawd.uscourts.gov> wrote:

Hi Ms. Nelson,

Your assigned Judge is John H. Chun. The motion notes on November 20, which is the earliest date the Court may issue a ruling. If you'd like to file a motion with the Court to make any other request, you are welcome to do so, and the Court will review your filings due course. Thank you!

Rachel Evans

Intake Clerk

U.S. District Court, Western District of WA

206.370.8435

rachel_evans@wawd.uscourts.gov

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, November 12, 2025 11:00 AM
To: Rachel Evans <Rachel_Evans@wawd.uscourts.gov>
Subject: Re: Proposed Order

CERTIFICATE OF SERVICE

I hereby certify that on December 4, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion Addressing Third-Party Subpoena Noncompliance and Resulting Prejudice** by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Jackson Lewis P.C.

15 S. Main Street, Suite 700

Greenville, SC 29601

Debra Nelson

Pro Se Plaintiff